Montgomery County District Court

Cause No. 2025-CV-0032

Susan Garza, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	2-4-26
Counsel for defendant:	Stephanie Williams, Ashford & Lyle LLP

Defendant, through its undersigned counsel, files this Original Answer to Plaintiff's Original Petition and respectfully shows the Court as follows.

I. General Denial

Pursuant to Texas Rule of Civil Procedure 92, Defendant generally denies each and every, all and singular, the material allegations contained in Plaintiff's Original Petition, and demands strict proof thereof by a preponderance of the evidence, as required by the Constitution and laws of the State of Texas.

II. Affirmative Defenses

First, Plaintiff's own negligence proximately caused or contributed to the incident in the parking lot. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced by the percentage of responsibility attributable to Plaintiff, and Plaintiff may be barred entirely if that percentage exceeds fifty percent.

Second, the incident was caused by the acts or omissions of a person or entity other than Defendant, and Defendant requests that the trier of fact consider the responsibility of all such persons under Section 33.004 of the Civil Practice and Remedies Code.

Third, Plaintiff failed to mitigate her alleged damages through reasonable efforts to obtain medical care and return to ordinary activities, and any recovery must be reduced accordingly.

Defendant reserves the right to amend this Answer as discovery proceeds.